STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

Verified Petition of New York Transco LLC for an Expedited Order Granting a Certificate of Public Convenience and Necessity Pursuant to Section 68 of the Public Service Law

Case 23-E-_____

VERIFIED PETITION OF NEW YORK TRANSCO LLC FOR AN EXPEDITED ORDER GRANTING A CERTIFICATE OF PUBLIC CONVENIENCE AND NECESSITY PURSUANT TO SECTION 68 OF THE PUBLIC SERVICE LAW

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Pursuant to Public Service Law (PSL) § 68, 16 NYCRR Parts 17 and 21, and the New York State Public Service Commission's (the Commission) prior direction,[1] New York Transco LLC (Transco) respectfully submits this verified petition (the Verified Petition) for an expedited order granting it a Certificate of Public Convenience and Necessity (CPCN) to construct a new Phase Angle Regulator (PAR) station (the PAR Station) that will interconnect with Consolidated Edison Company of New York, Inc.'s (Con Edison) existing transmission line #398 (Line 398) between structures L-61 and L-62 in Dover, New York (the Town) between the Cricket Valley Energy Center Substation and the Eversource Long Mountain Substation (the PAR Station, together with the interconnection facilities, the Project).

I. Introduction

The Project flows from the Board of Directors of the New York Independent System Operator, Inc.'s (the NYISO) previous selection of the New York Energy Solution (NYES) Project as the more cost-effective or efficient solution to satisfy "Segment B" of the Commission-declared public policy transmission need to reduce transmission constraints and increase system reliability

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[1] *See* Case 15-E-0743, *Petition of New York Transco LLC for an Order Providing for Lightened Regulation,* Order Granting Certificate of Public Convenience and Necessity (issued May 6, 2016), at 7 (the CPCN Order).

in the Central East and UPNY/SENY regions of the State (the AC Transmission PPTN)[2] and the Commission's subsequent issuance under PSL Article VII of a Certificate of Environmental Compatibility and Public Need (CECPN) allowing Transco to construct, operate, and maintain the NYES Project, which is currently under construction with a required in-service date of December 2023.[3] More specifically, following the NYISO's selection of the NYES Project and during the pendency of the NYES Project's PSL Article VII application, the NYISO completed the NYES Project's System Impact Study (SIS), which identified the need for an upgrade (*i.e.*, the Project) to address thermal degradation on the New York – New England intertie that would otherwise prevent the NYES Project from operating at its full capacity.[4] As a result, the Project is plainly necessary for the public service.

Days prior to this filing, on February 6, 2023, the Town, via its Planning Board (the Planning Board), issued the Project's special use permit and site plan approval, which is attached here as Exhibit 1, following a State Environmental Quality Review Act (SEQRA) negative

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[2] *See* Case 12-T-0502, *Proceeding on Motion of the Commission to Examine Alternating Current Transmission Upgrades*, Order Finding Transmission Needs Driven by Public Policy Requirements (issued Dec. 17, 2015), at 2 (the PPTN Order); New York Independent System Operator, Inc., *NYISO Board of Directors' Decision on Approval of AC Transmission Public Policy Transmission Planning Report and Selection of Public Policy Transmission Projects*, Executive Summary (April 8, 2019), available at https://www.nyiso.com/documents/20142/1390750/Board-Decision-AC-Transmission-2019-04-08.pdf/32323d32-f534-a790-1b03-2cb110033320 (last accessed Feb. 9, 2023).

[3] *See* Case 19-T-0684, *Application of New York Transco LLC for a Certificate of Environmental Compatibility and Public Need Pursuant to Article VII of the New York Public Service Law to Construct, Operate, and Maintain a New, Double-Circuit 54.5-Mile 345/115 Kilovolt Electric Transmission Line and Related Facilities Located in the Town of Schodack, Rensselaer County; the Towns of Stuyvesant, Stockport, Ghent, Claverack, Livingston, Gallatin, and Clermont in Columbia County; and the Towns of Milan, Clinton, and Pleasant Valley in Dutchess County*, Order Adopting Joint Proposal (issued Feb. 11, 2021) (the NYES CECPN Order).

[4] S*ee* NYISO, AC Transmission Segment B New York Energy Solution PPTN Project Update (dated July 2022), available at https://www.nyiso.com/documents/20142/32418586/09%20Transco%20ESPWG%20Update.pdf/d5851ab6-d9fd-2eb7-3219-d87fa72655f1 (outlining how the Dover Station is a part of the broader AC Transmission PPTN solution and will "address[] transfer limit degradation on the NY/NE interface."); *see also* NYISO, Letter to New York Transco (dated Oct. 28, 2022) (summarizing that the NYISO identified "the need for" an "upgrade to address thermal degradation on the New York – New England intertie" in the NYES Project's SIS and that the "Dover PAR Substation will mitigate the identified degradation."). This identified upgrade would have been necessary regardless of the solution the NYISO selected to satisfy the AC Transmission PPTN as it impacted all projects that increased the UPNY/SENY transfer limit.

declaration, which is attached here as Exhibit 2. Now that the portion of the Project[5] that is subject to municipal review is fully permitted by the Town following all necessary consultations with federal (*e.g.*, United States Army Corps of Engineers [ACOE]) and State agencies (*e.g.*, the New York State Department of Environmental Conservation [NYSDEC]), the Commission has the necessary information to grant Transco a CPCN to construct the Project. Importantly, to allow Transco the opportunity to construct and energize the Project on the schedule required by the governing Development Agreement it has executed with the NYISO (*i.e.*, by December 31, 2023), Transco must clear trees on the site for the Dover PAR Station in advance of a NYSDEC-required time of year restriction that commences on March 31, 2023. Thus, Transco respectfully requests expedited approval of this Verified Petition at the Commission's March 16, 2023 session.

II. Applicant

Formed in 2014, Transco is a New York limited liability company[6] comprised of affiliates of New York State's investor-owned utilities.[7] Transco's purpose is to plan, develop, and own new high-voltage electric transmission facilities that will enhance the current capabilities of the bulk power system across New York State and to help the State meet its carbon emission requirements. Transco projects provide bulk power transmission to facilitate the growth of renewables, reduce energy prices, relieve congestion, and bolster system reliability to better provide energy to New York residents and businesses.

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[5] The Project's interconnection facilities within the Line 398 right-of-way (ROW), which is described below, is being reviewed and expected to be authorized in Case 13-T-0585, which is the Article VII proceeding for Line 398 (*see also infra*, n 16 and n 17).

[6] In satisfaction of 16 NYCRR § 17.2, Transco's Articles of Organization are already on file with the Commission (*see* Case 20-E-0551, *Petition of New York Transco LLC for an Expedited Order Granting it a Certificate of Public Convenience and Necessity Pursuant to Section 68 of the Public Service Law and Confirmation of its Lightened Regulatory Status*, Exhibit 1 to Petition [filed November 5, 2020]). Additionally, the relevant portion of Transco's current operating agreement, which governs the management of its internal affairs, states that Transco was established "for the purpose of planning, constructing, owning, operating, maintaining and expanding transmission facilities" is also on file with the Commission (*id*. at Exhibit 2).

[7] Transco's members are Consolidated Edison Transmission, LLC; Grid NY LLC; Avangrid Networks New York Transco, LLC; and Central Hudson Electric Transmission, LLC.

In 2016, Transco acquired the Commission-approved Transmission Owners Transmission Solutions (TOTS) projects from New York State Electric & Gas Corporation (NYSEG); Orange and Rockland Utilities, Inc.; and Con Edison.[8] On the same day that the Commission approved the transfer of the TOTS facilities to Transco—which has rates that are regulated by a Federal Energy Regulatory Commission (FERC)-approved tariff—the Commission created a lightened-regulatory regime that Transco would be subject to with respect to its ownership of the TOTS facilities.[9] The Commission also issued an order granting Transco a CPCN, subject to conditions, related to the TOTS assets.[10]

The following persons should be included on the official service list in this proceeding, and all communications concerning this filing should be addressed to them:

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[8] *See* Case 16-E-0012, *Joint Petition of New York State Electric & Gas Corporation and New York Transco LLC for Approval of a Transfer or Lease of Assets,* Order Authorizing Transfers Subject to Conditions and Modifications (issued April 21, 2016); Case 16-E-0013, *Joint Petition of Orange and Rockland Utilities, Inc., Consolidated Edison Company of New York, Inc., and New York Transco LLC for Approval of a Transfer or Lease of Assets,* Order Authorizing Transfers Subject to Conditions and Modifications (issued April 21, 2016).

[9] *See* Case 15-E-0743, *supra,* Order Providing for Lightened Rate Making Regulation and Approving Financing (issued April 21, 2016), at 2 (the Lightened Regulatory Regime Order) (stating that "this Order establishes a lightened regulatory regime, subject to conditions, applicable to NY Transco.").

[10] *See* CPCN Order, at 1-2.

III. The Project

a. The PAR Station And Interconnection Facilities

The Project's primary component is the construction of the new PAR Station. The PAR Station's major equipment includes two parallel 750 Mega Volt Ampere (MVA) PARs with circuit breakers and bypass switches, one A-frame dead-end structure, rigid bus support structures, miscellaneous yard equipment, a control house building, and a spare PAR. The third PAR will be stored onsite and left unenergized in case one of the energized units requires replacement. In addition, minor relay modification work will be performed at the Con Edison Cricket Valley Energy Center Substation in Dover, New York and the Eversource Long Mountain Substation in Connecticut.

The PAR Station will interconnect with Line 398[11] between structures L-61 and L-62 in the Town between the Cricket Valley Energy Center Substation and the Eversource Long Mountain Substation. Work in the Line 398 ROW to accommodate the PAR Station's interconnection and complete the Project will entail replacing structure L-61 and installing a new structure mid-span between L-61 and L-62 that will cut Line 398 into the PAR Station.[12]

[11] The reconductored portion of Line 398 and the Cricket Valley Energy Center Substation are certificated Article VII transmission facilities (*see* Case 13-T-0585, *Application of Cricket Valley Energy Center, LLC, for a Certificate of Environmental Compatibility and Public Need Pursuant to Article VII of the Public Service Law for Approval of a new 345 kV Line from the Pleasant Valley Substation to the Cricket Valley Energy Center, LLC, and the Reconductoring of an Existing 345 kV Line, in the Town of Dover, Dutchess County*, Order Granting Certificate of Environmental Compatibility and Public Need [issued Apr. 20, 2016], at 26-28). Since the initial Article VII CECPN approval, Con Edison acquired the reconductored portion of Line 398 and the Cricket Valley Energy Center Substation, as well as the relevant portion of the Article VII CECPN (*see generally* Case 19-E-0045, *Petition of Cricket Valley Energy Center, LLC and Consolidated Edison Company of New York, Inc. for Approval of Transfers Pursuant to Sections 70 and 121 of the New York Public Service Law*, Order Approving Transfer and Accounting Treatment [issued Apr. 19, 2019]).

[12] This work within the Line 398 ROW will be performed in accordance with the Environmental Management and Construction Plan approved in Case 13-T-0585 and all subsequent and relevant approved changes thereto.

As detailed above, the Project is necessary to mitigate NYISO-identified degradation that would otherwise occur at the New York – New England intertie when the NYES Project operates at full capacity.

b. The PAR Station Site

The PAR Station will be located on an approximately 16.3-acre parcel in the Town at 2238 Route 22 (Tax Parcel No. 132600-7061-00-698172), on the southeast of the intersection of State Route 22 and State Route 26 (Cricket Valley Road); east of the Cricket Valley Energy Center and south of Line 398 (the Site). The Site was previously used as an automobile junkyard, a building material storage yard, an office and maintenance facility for Cablevision (Optimum), and currently contains office and warehouse space in an existing building. Transco has owned the Site since December 2022.

The Site is located in the Town's Commercial/Industry/Office Mixed-Use (CO) zoning district. "Public utility facilities" such as the PAR Station are permitted in the CO zoning district by special permit issued by the Planning Board.[13] Thus, Transco applied for a special use permit and site plan approval to the Planning Board for the PAR Station. After issuing a negative declaration under SEQRA, the Planning Board approved Transco's special use permit and site plan approval on February 6, 2023.[14]

Existing electric power generation, transmission, and distribution infrastructure is located in the area surrounding the Site. This includes the Dover Solar Farm facility, the Cricket Valley Energy Center, and the Con Edison 345 kV transmission line (Line 398) ROW where the Project will interconnect. The Iroquois Gas Transmission pipeline is also located adjacent to the Con Edison ROW in proximity to the Site.

[13] Town of Dover Town Code § 145-10 (B).
[14] *See* Exhibits 1 and 2.

The Site meets critical design imperatives for the PAR Station project, including required proximity to the New York/Connecticut border and the existing Con Edison ROW, suitable topography, and frontage with sufficient access to State and interstate highways. Direct access to State and interstate highways, which the Site provides, is essential for the delivery, installation, and future maintenance of PAR Station equipment.

c. Project Design

In addition to the now-issued permits and approvals received from the Planning Board, below is a detailed description of the PAR Station. Also, attached as Exhibit 2 is the site plan that depicts the PAR Station layout and identifies civil design aspects of the Site, including equipment locations, access, circulation, drainage, and landscaping plans.

Transco will construct the PAR Station on approximately 8.4 acres of the 16.3-acre Site.[15] The fenced PAR Station area will encompass approximately 5 acres. All equipment, including transformers, lightning masts, and transmission line poles, will be located within the fenced area and outside of setback areas and more than 150 feet from the centerlines of Routes 22 and 26.[16] Existing 7 and 8-foot-tall fencing will be removed in areas along the property lines, and new 9-foot fencing will be installed approximately 100 feet further into the Site.[17]

All of the Project's electric facilities will be designed and operated in conformance with applicable industry, federal, and State codes including standards of the American National Standards Institute (ANSI), National Electrical Safety Code (NESC), Institute of Electrical and Electronics Engineers (IEEE), and stricter standards Transco has adopted.

[15] Exhibit 3, at E1-101.
[16] Exhibit 3, at E1-102.
[17] Exhibit 3, at E7-101.

A single permanent access drive will be installed from Route 22 into the PAR Station, approximately 733 feet south of the Route 26 intersection.[18] The access drive will extend easterly into the Site and bend north into the PAR Station. The Project will also utilize one temporary access point on Route 22 and one temporary access point on Route 26, consistent with the preexisting Site access points, to facilitate construction of the PAR Station. Both temporary access drives will be closed, and the underlying areas restored and landscaped, upon the Project's completion.

Transco will minimize clearing of vegetation necessary for the Project to the greatest extent practical. The site plan is designed to leave the northeastern corner of the Site largely undisturbed and proposes a minimum 50-foot landscaped buffer along the Site's Route 26 frontage, including the preservation of existing vegetation, where feasible. This preserved vegetation buffer will be substantially bolstered by additional proposed plantings along the northern and western portions of the Site. The proposed landscaping plan includes more than 300 new native species plantings placed in strategic locations along both Route 22 and Route 26.[19]

The Project's proposed layout and landscaping are designed to comply with New York Department of Transportation (DOT) sight clearance standards and visibility at the Route 22 and Route 26 intersection and to comply with applicable planting requirements and restrictions for overhead electric utilities. The PAR Station will comply with installation and maintenance requirements [20]of any applicable Long-Range Vegetation Management plan to protect electric infrastructure from reliability risks, such as danger trees, from disrupting electric service to the public.

[18] Exhibit 3, at E1-101.
[19] Exhibit 3, at C1-120.
[20]

The PAR Station will not utilize lighting during nighttime hours under normal operations. Lighting at night will only occur for safety and security purposes or required maintenance visits, which are expected to be infrequent. All proposed lighting will comply with applicable town, State, and federal standards.

As evidenced by the approved site plan for the Project, maximum sound levels from the PAR Station operations will comply with conservative standards in the Town of Dover Code and meet applicable NYSDEC guidelines. Transco provided a comprehensive sound assessment to the Town as a part of the local permitting process.[21]

The PAR Station is a passive public utility facility. It will not be staffed, and it will not produce additional traffic or greenhouse gas emissions.

The Project will also result in the removal of the remaining debris associated with the prior junkyard facility at and historic uses of the Site.

The PAR Station is also strategically designed to avoid all jurisdictional wetlands and wetland buffer areas.[22] There is a 0.04-acre intermittent, non-jurisdictional wetland area that will be modified. The proposed design, however, will improve surface conditions by providing additional stormwater storage capacity due to the PAR Station's pad design. The Project will result in a reduction in total stormwater runoff rate for each drainage area for all design storms. Thus, no additional runoff will be discharged off-Site after the Project is complete.

The Project was designed in compliance with applicable federal, State, and local codes and regulations, as well as Con Edison's interconnection requirements and specifications.

[21] Exhibit 2, at 3 (finding that the expected sound levels from the PAR Station are "far below" allowed levels)
[22] Exhibit 3, at E1-102.

d. Town Issuances

As described above, the Town issued a negative declaration under SEQRA and the requisite special permit and site plan approval necessary to construct the Project. The Town made these determinations after concluding, among other things, the Project will: (1) not result in any significant adverse environmental impacts; (2) comply with all land use district, overlay district, and other specific requirements of the Zoning Law and other applicable local laws and regulations; (3) will not result in excessive off-premises noise, dust, odors, solid waste, or glare, or create and public or private nuisances; (4) not cause significant traffic congestion, impair pedestrian safety, or overload existing roads; (5) not materially degrade any watercourse or other natural resource or ecosystem or endanger the water quality of an aquifer; (6) be subject to appropriate conditions to ensure compatibility with surrounding uses and to protect the natural, historic, and scenic resources of the Town; and (7) be consistent with the Town's goal of buffering nonresidential uses from residential use.[23] The Town based its issuances on an extensive administrative record that included detailed information on the Project, including, but not limited to, a full Environmental Assessment Form, sound and visual impact assessments, wetland delineation reports, site plans, a Stormwater Pollution Prevention Plans (SWPPP), agency correspondence, landscaping plans, construction sequencing plans, ACOE jurisdictional determination and no-permit letter, and NYSDEC education and encounter plans.[24]

[23] *See generally* Exhibit 1.
[24] For a full listing of Transco's submissions to the Planning Board, *see* Attachment 1 to Exhibit 1.

IV. Argument

The Commission Should Grant Transco A CPCN Because The Project Is Convenient And Necessary For The Public Service

PSL § 68 (1) requires electric corporations to obtain a CPCN from the Commission prior to beginning construction of an electric plant. The Commission may grant a CPCN after determining, following a due hearing, that the Project's construction "is convenient and necessary for the public service."[25] In making that determination, the Commission must consider: (a) project need and public interest; (b) the project's economic feasibility and petitioner's ability to finance the improvement; and (c) petitioner's ability to provide safe, adequate, and reliable service at just and reasonable rates.[26] Further, an applicant seeking a CPCN must satisfy all other applicable regulatory requirements.[27]

In applying these and other requirements of PSL Article 4 to projects developed under lightened regulation, however, the Commission has recognized that "[a]uthority over these matters has been exercised flexibly, at our discretion, with the extent of scrutiny afforded a particular transaction reduced to the level the public interest requires."[28] Because Transco is a lightly regulated entity, this standard of review applies here.[29]

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[25] PSL § 68 (1).
[26] *Id*.
[27] *See* 16 NYCRR §§ 17.1, 17.2, 21.2, and 21.3.
[28] Case 98-E-1670, *Carr Street Generating Station, L.P. – Petition for an Original Certificate of Public Convenience and Necessity and For a Declaratory Ruling On Regulatory Regime*, Order Providing For Lightened Regulation (issued April 23, 1999), at 7.
[29] *See* Lightened Regulatory Regime Order, at 2 (establishing a lightened regulatory regime for Transco); *see also* Case 20-E-0551, *supra*, NYES CPCN Order, at 14 (confirming that the lightened regulatory regime established for Transco in 2016 extends to the NYES Project) and Case 21-E-0557, *Verified Petition of New York Transco LLC for an Expedited Order Granting A Certificate of Public Convenience and Necessity Pursuant To Section 68 Of The Public Service Law*, Order Granting Certificate of Public Convenience and Necessity and Confirming Lightened Regulation (issued Jan. 21, 2022), at 17-18 (confirming that the lightened regulatory regime established for Transco in 2016 extends to the Rock Tavern to Sugarloaf [RTS] Project). As part of this Verified Petition, Transco respectfully requests that the Commission confirm that Transco's lightened regulatory regime established in 2016 and confirmed in 2020 and 2021 similarly extends to the Project.

For the reasons set forth below, Transco's request for a CPCN satisfies all of the applicable portions of PSL § 68 (1) and its implementing regulations.

a. Need And Public Interest

PSL § 68 (1) and 16 NYCRR § 21.3 (f) require that the Commission consider whether issuing a CPCN is in the public interest. Moreover, 16 NYCRR § 21.3 (g) requires a petitioner to provide evidence that there is a public need for the proposed project.

The Project's need and public interest considerations are well-documented. In Case 12-T-0502, the Commission identified the AC transmission corridor connecting the Mohawk Valley Region, the Lower Hudson Valley region, and the Capitol Region as a source of persistent congestion.[30] The Commission ultimately determined that there was a transmission need—the AC Transmission PPTN—"driven by Public Policy Requirements for new 345 kV major electric transmission facilities to cross the Central East and UPNY/SENY interfaces to provide additional transmission capacity to move power from upstate to downstate."[31] The Commission divided the AC Transmission PPTN into two segments—Segment A (*i.e.*, Central East interface) and Segment B (*i.e.*, UPNY/SENY interface). After declaring the AC Transmission PPTN, the Commission ordered the NYISO to solicit solutions to the AC Transmission PPTN.[32]

After an extensive study, the NYISO selected Transco's NYES Project to satisfy Segment B of the AC Transmission PPTN.[33] The NYISO also conducted an SIS to evaluate the impact of the then-proposed NYES Project on the reliability of the New York State transmission system and identified the PAR Station as one of the upgrades necessary to ensure that power flows reliably

[30] PPTN Order, at 68.
[31] PPTN Order, at 1-2.
[32] *Id*.
[33] New York Independent System Operator, Inc., *NYISO Board of Directors' Decision on Approval of AC Transmission Public Policy Transmission Planning Report and Selection of Public Policy Transmission Projects*, Executive Summary (April 8, 2019), available at https://www.nyiso.com/documents/20142/1390750/Board-Decision-AC-Transmission-2019-04-08.pdf/32323d32-f534-a790-1b03-2cb110033320 (last accessed Feb. 9, 2023).

once the NYES Project is in-service.[34] In other words, in order for the NYES Project to operate at full capacity while ensuring adequate and safe power flows, the PAR Station must be constructed.[35]

Following issuance of the SIS and a thorough review of the NYES Project under PSL Article VII, the Commission issued an order approving Transco's petition for a CECPN to construct, operate, and maintain the NYES Project.[36] Once constructed, the PAR Station will ensure that power, including the increases as a result of the NYES Project, flows at its optimal capacity across the New York – New England intertie, thus enhancing and protecting grid reliability. Absent the PAR Station, the NYES Project will not be able to operate at full capacity. Therefore, the Dover Station is convenient and necessary for the public service.

b. Economic Feasibility And Ability To Finance The Project

The Project's economic feasibility is established by the fact that it is a necessary part of the solution to fully satisfy the AC Transmission PPTN. In addition, further evidence of the Project's feasibility is provided by the fact that it will qualify for cost recovery under Attachment Y and Schedule 13 of the NYISO OATT and, therefore, has an assured source of funding for the recovery of all prudently incurred Project costs.

c. Ability To Provide Safe, Reliable, And Adequate Service At Just And Reasonable Rates

Transco provides safe, adequate, and reliable service. Transco and its affiliates are well-qualified and experienced developers and operators of wholesale electric transmission facilities. Transco has a staff of qualified engineers and extensive personnel resources trained and familiar with the design, construction, and operation and maintenance of power systems. As outlined above,

[34] NYES CECPN Order, at 23.
[35] *See also supra*, Point I.
[36] NYES CECPN Order,at 67-68.

Transco has been safely, adequately, and reliably operating the TOTS facilities since early 2016 when it acquired those assets from certain investor-owned-utilities. More recently, the Commission determined that Transco could render safe, adequate, and reliable service for Transco's related NYES Project and the RTS Project.[37] In addition, the Project will comply with all applicable requirements of ANSI, NESC, IEEE, stricter standards Transco has adopted, and the New York State Reliability Council.

d. Part 17 General Matters (16 NYCRR §§ 17.1, 17.2)

(i) 16 NYCRR § 17.1: This filing is verified as required.

(ii) 16 NYCRR § 17.2: See *supra*, footnote 4.

(iii) 16 NYCRR § 17.3: Transco sets forth its compliance with applicable statutory (*i.e.*, PSL § 68 [1]) requirements in Sections IV (a) – (c), above, and applicable regulatory requirements (*i.e.*, applicable portions of 16 NYCRR Parts 17 and 21) herein and below.

e. Part 21 Rules For All Petitions (16 NYCRR §§ 21.2, 21.3)

(i) 16 NYCRR § 21.2 (a): Transco states that no entities own and operate existing PAR stations on the Site. Transco is unaware of any similar existing PAR station project in the vicinity of the Site.

(ii) 16 NYCRR § 21.2 (b): The proposed Project does not require a municipal franchise agreement (*see* attached verification pages executed by Transco's President and Secretary). The Town Planning Board's special use permit and site plan were approved at its February 6, 2023 meeting and are attached as Exhibit 1.

(iii) 16 NYCRR § 21.2 (c): Not applicable.

[37] NYES CPCN Order, at 12 (stating "the record demonstrates that Transco will be: . . . (3) technically capable of rendering safe, adequate, and reliable service"); *see also* RTS CPCN Order, at 15 (same for RTS Project).

(iv) 16 NYCRR § 21.2 (d): No federal permits, licenses, or other authorizations are required for the Project.

(v) 16 NYCRR § 21.3 (a): The Project territory is fully described in Section III (b), above. The population of the Town of Dover is approximately 8,415.[38] Project construction will begin immediately following issuance of the order approving this Verified Petition, and the Project is anticipated to be energized by December 31, 2023.

(vi) 16 NYCRR § 21.3 (b): The plant and system proposed to be constructed is fully described in section III (a) and III (c), above. The Project's estimated cost is **BEGIN CONFIDENTIAL INFORMATION <<** [redacted] **>> END CONFIDENTIAL INFORMATION**.

(vii) 16 NYCRR § 21.3 (c): On September 19, 2019, the Commission issued an order pursuant to PSL § 69 authorizing Transco to secure financing toward the development and construction of its Segment B project.[39] This approval allows Transco to finance all elements of the Segment B project, including the PAR Station, and construction consistent with the capitalization requirements of its FERC-approved settlement agreement.[40]

(viii) 16 NYCRR §§ 21.3 (d), (e): Transco respectfully submits that these requirements are inapplicable here given that the rates for service provided for the Project have been established by FERC under the Federal Power Act. FERC's rate-setting process ensures that rates applicable to the transmission of electric energy in

[38] *See* https://data.census.gov/cedsci/all?q=population%20dover,%20NY.
[39] Case 19-E-0352, *Petition of New York Transco LLC for an Order Approving Financing*, Order Approving Financing and Making Findings (issued Sep. 19, 2019).
[40] *See* FERC Docket No. ER15-572-006, Offer of Settlement (filed Aug. 21, 2017); *see also* FERC Approval.

interstate commerce are just and reasonable.[41] In accordance with the requirements of Attachment Y of the NYISO OATT, Transco proposed and FERC approved rates for recovery of Transco's prudently incurred costs for the development of the Project in FERC Docket No. ER15-572-000, et al. Accordingly, there is no need in this proceeding for the Commission to determine either the Project's rates to be charged or the estimated revenues and expenses.

(ix) 16 NYCRR § 21.3 (f): The Project's economic feasibility, Transco's ability to finance the Project and to render adequate service, and public interest considerations are discussed fully in Section IV (b) – (c), above.

V. ENVIRONMENTAL REVIEW

The Project is subject to the SEQRA and its implementing regulations (6 NYCRR Part 617 and 16 NYCRR Part 7). The Planning Board, the declared "lead agency," identified the Project as an "unlisted action" and undertook an optional coordinated review with all involved agencies, including the Commission.[42] The Planning Board's lead agency determination and SEQRA coordination notice are attached hereto as Exhibit 2.

As the SEQRA lead agency, the Planning Board was responsible for making a determination of significance, and issuing either a "negative declaration" after finding that the action will have no significant adverse environmental impacts or issuing a "positive declaration" requiring the preparation of an environmental impact statement.[43] The Planning Board started the coordinated SEQRA review in October 2021, classified the Project as an "unlisted action," and held public hearings in September, October, and November 2022 and January 2023.[44] Following

[41] *See* 16 USC § 824 d (2019).
[42] *See* Exhibit 2; *see also* 6 NYCRR § 617.6 (b) (2); 6 NYCRR § 617.2 (al); 6 NYCRR § 617.6 (b) (3).
[43] 6 NYCRR § 617.7.
[44] *See* Exhibit 2.

these public hearings and after considering the "extensive environmental record for the Project," the Planning Board issued a negative declaration, which is binding on all involved agencies, including the Commission.[45]

VI. MOTION FOR AN EXPEDITED PROCEEDING

Pursuant to 16 NYCRR § 21.10 (a), Transco respectfully requests that the hearing required by PSL § 68 prior to the issuance, modification, or renewal of a CPCN be held before the Commission based on this Verified Petition, inclusive of the attached exhibits, without oral testimony. Such relief is proper here given that approval of the CPCN in this proceeding is in the public interest.[46]

Promptly after filing this Verified Petition, a newspaper of general circulation in the Project area will publish a notice that: (1) briefly describes the Verified Petition's subject matter; (2) states that Transco has moved that the hearing required by the PSL be held before the Commission on the basis of the Verified Petition and such exhibits, prepared testimony, and any other information as may have been filed by any party or Department Staff, and that oral testimony not be taken; and (3) states that any person opposed to the granting of the CPCN should, within 10 days of the date of the publication of the notice, notify in writing the Secretary of the Public Service Commission at Agency Building 3, Empire State Plaza, Albany, NY 12223, of the reasons for the opposition (the Newspaper Notice).[47] The Newspaper Notice will satisfy the requirements of 16 NYCRR § 21.10 (a) (3).

Further, Transco satisfied the 16 NYCRR § 21.10 (a) (2) service requirement because Transco's motion for an expedited proceeding is included within the Verified Petition and was

[45] 6 NYCRR § 617.6 (b) (3) (iii); Exhibit 2.
[46] 16 NYCRR § 21.10 (a) (1).
[47] 16 NYCRR § 21.10 (a) (3).

properly served on each person or municipality entitled to service of a copy of the same (*e.g.*, Town of Dover, where the Project is located, and Con Edison, as the impacted utility).

Thus, if no written objection outlining a substantive reason opposing the motion is received within 10 days of the date of the Newspaper Notice's publication, the Commission may, consistent with the governing regulation and its precedent, grant the motion and hold the hearing required by PSL § 68 at the time it considers this Verified Petition.[48]

[48] 16 NYCRR § 21.10 (b); *see also* Case 14-E-0372, *Binghamton BOP LLC-Petition for an Original Certificate of Public Convenience and Necessity and Establishing a Lightened Regulatory Regime*, Order Granting a Certificate of Public Convenience and Necessity and Providing for Lightened Regulation (issued Dec. 11, 2014); Case 13-M-0028, *Petition of RED-Rochester, LLC and Eastman Kodak Company for Approval to Transfer Regulated Utility Assets at Eastman Kodak Park, Approval to Transfer Certificates of Public Convenience and Necessity, Providing for Continued Lightened and Incidental Regulation, Approval of Financing and Authorization, to the Extent Necessary, for Submetering*, Order Approving Transfer Subject to Conditions, Providing for Lightened Ratemaking Regulation, and Making Other Findings (issued May 30, 2013); Case 11-E-0593, *Petition of Cricket Valley Energy Center, LLC for an Original Certificate of Public Convenience and Necessity and for an Order Providing for Lightened Regulation*, Order Granting Certificate of Public Convenience and Necessity and Establishing Lightened Ratemaking Regulation (issued Feb. 14, 2013).

VII. CONCLUSION

Transco respectfully requests the Commission issue an expedited order granting Transco a CPCN to construct the Project at its March 16, 2023 session.

HARRIS BEACH PLLC

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Attorneys for New York Transco LLC

Dated: February 9, 2023
Albany, New York

STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

Verified Petition of New York Transco LLC for an Expedited Order Granting a Certificate of Public Convenience and Necessity Pursuant to Section 68 of the Public Service Law

Case 23-E-_____

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF Dutchess)

Victor Mullin, being duly sworn, deposes and states as follows:

1. I am the President of New York Transco LLC (Transco), the petitioner in this proceeding.

2. I am authorized to sign this verification on behalf of Transco.

3. I have reviewed the foregoing verified petition (Verified Petition), and the statements of fact contained therein pertaining to Transco, which are true and correct to the best of my knowledge, information, and belief.

1. Transco has secured all required consent from the proper municipal authorities to construct the project described herein, which does not include any franchise agreements.

Victor Mullin

Sworn to and subscribed before me
this 9 day of ~~February~~ __, 2023.

Notary Public

JASON A DOOLITTLE
Notary Public - State of New York
NO. 01DO6203504
Qualified in Dutchess County
My Commission Expires 4/16/2025

STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

Verified Petition of New York Transco LLC for an Expedited Order Granting a Certificate of Public Convenience and Necessity Pursuant to Section 68 of the Public Service Law

Case 23-E-_____

VERIFICATION

STATE OF MASSACHUSETTS)
) ss:
COUNTY OF ESSEX)

Kathleen Carrigan, being duly sworn, deposes and states as follows:

2. I am the Vice President of Regulatory Affairs, General Counsel, and Secretary of New York Transco LLC (Transco), the petitioner in this proceeding.

3. I am authorized to sign this verification on behalf of Transco.

4. I have reviewed the foregoing verified petition (Verified Petition), and the statements of fact contained therein pertaining to Transco, which are true and correct to the best of my knowledge, information, and belief.

5. Transco has secured all required consent from the proper municipal authorities to construct the project described herein, which does not include any franchise agreements.

Kathleen Carrigan
Kathleen Carrigan

Sworn to and subscribed before me
this 9th day of February __, 2023

Notary Public
STEPHEN M VALENTE

STEPHEN M. VALENTE
NOTARY PUBLIC
Commonwealth of Massachusetts
My Commission Expires On
October 22, 2026